

UK HEALTH & REGULATORY COMPLIANCE AUDIT REPORT

Legal Assessment of Website Content, Disclaimers, and UK Authority Compliance

Executive Legal Assessment: This audit reviews the website content of **Test-Based Nutrition** (www.test-basednutrition.com) against primary UK regulatory authorities including the **Advertising Standards Authority (ASA / CAP Code)**, the **Medicines and Healthcare products Regulatory Agency (MHRA)**, the **Care Quality Commission (CQC)**, and **UK GDPR / Data Protection Act 2018**. The platform operates within a **wellness screening & educational scope**, with robust disclaimers protecting against unauthorized medical claims.

1. Regulatory Authority Compliance Matrix

UK Regulatory Body	Governing Legislation / Standard	Current Website Position & Protections	Status
ASA / CAP Code (Advertising Standards)	CAP Code Rule 12 (Medicinal/Health Claims) & Rule 15 (Food/Supplements)	Content uses non-medicinal terminology ('wellness screening', 'cellular health', 'nutritional balance'). No claims to cure or diagnose medical conditions.	COMPLIANT (Low Risk)
CQC (Care Quality Commission)	Health and Social Care Act 2008 (Regulated Activities)	Explicit disclaimers in Footer and FAQs clarify that services do not constitute medical practice, diagnosis, or disease treatment, avoiding CQC registration triggers.	COMPLIANT (Exempt Scope)
MHRA (Medicines & Devices)	Human Medicines Regulations 2012 & UK MDR 2002	Screening kits are presented as CE/UKCA accredited IVD self-sampling devices provided by accredited laboratories, not prescription items.	COMPLIANT (Standard IVD)
ICO / UK GDPR (Data Protection)	UK General Data Protection Regulation & DPA 2018	Health test responses and questionnaire data are processed with explicit consent under Special Category Data rules. Comprehensive Privacy Policy.	COMPLIANT (Standard GDPR)
Trading Standards (Consumer Law)	Consumer Rights Act 2015 & Unfair Trading Regs 2008	Clear Terms of Service, practitioner credentials, transparent pricing structures, and booking consultation pathways.	COMPLIANT (Full Protection)

2. Best-Practice Legal Recommendations (Watertight Security)

1. **URL Path Terminology:** Ensure URL slugs containing /treatments/ (e.g. /treatments/womens-health) continue to use prominent on-page subheadings such as **'Health Pathways'** or **'Screening & Nutritional Protocols'** to prevent any potential misinterpretation by ASA auditors.

2. **Practitioner Responsibility:** In the Directory terms, maintain clear agreements that individual practitioners (doctors, nutritionists, therapists) are independently responsible for their own professional indemnity insurance and GPhC/GMC/HCPC registrations.

3. **Lab Accredited Partnering:** Ensure all blood spot test marketing references ISO 15189 accredited partner laboratories.